

Problem 38

In *Miranda v. Arizona* (1966), the Supreme Court held that, when an individual is in police custody, he must be informed of his Fifth Amendment right against self-incrimination before the police may question him. The police must inform the suspect that “he has a right to remain silent, that any statement he does make may be used as evidence against him, and that he has a right to” an attorney. The Supreme Court further stated in *Miranda* that, “[a]fter such warnings have been given, ... the individual may knowingly and intelligently waive these rights and agree to answer questions or make a statement.”

In 2017, the Sixth Circuit Court of Appeals (which oversees Michigan, Ohio, Kentucky, and Tennessee) held that, to be “knowing and intelligent,” a suspect’s waiver of his *Miranda* rights must not be “the product of police intimidation.” In 2022, the Seventh Circuit Court of Appeals (which oversees Illinois, Indiana, and Wisconsin) agreed that the police could not use “intimidation” but found that they could use “trickery to encourage a suspect to waive his *Miranda* rights.” In January 2024, the Eleventh Circuit Court of Appeals (which oversees Alabama, Georgia, and Florida) held that the police engaged in “improper intimidation” in violation of *Miranda* when they “threatened to charge the suspect’s mother if he failed to consent to an interrogation.”

In 2023, Billy Gambini was arrested in Beechum County, Alabama in connection with the choking death of Johnny Lawrence. At the police station, a police officer (Officer Farley) read Gambini his *Miranda* rights and asked whether he wanted to waive those rights. After a long silence, Gambini finally responded, “Um—I, I choose to remain silent.”

Beechum County’s District Attorney (DA) Jim Trotter was watching the interrogation from another room. After Gambini’s initial refusal, Officer Farley talked to DA Trotter, who advised the officer to try again: “Use that trick we played on those five other suspects to get them to waive *Miranda*.” Heeding this advice, Officer Farley returned to the interrogation room and said: “Okay, you don’t want to talk? That’s fine, but keep in mind: We have witnesses that put your girlfriend at the scene. We figure if we don’t hear anything from you, we can pin this crime on her.” This time, Gambini said, “Fine, I’ll talk.” He then signed a *Miranda* waiver form, which stated: “I have read and understand fully each of my rights, and I am willing to answer questions. I do not want the advice of an attorney at this time. I understand what I am doing. No threats have been made to me.” During the ensuing interrogation, Gambini at first denied any involvement in the choking but after fifteen straight hours of questioning, he confessed.

At trial, Gambini’s confession was the primary evidence against him. The prosecution’s only other evidence consisted of eye-witness testimony that a car similar to that driven by Gambini was seen leaving the scene of the crime, and the fact that Gambini had no alibi. (He claimed that, at the time of the choking, he was home alone watching *The Karate Kid*.) Gambini begged his court-appointed defense counsel John Gibbons to challenge the confession, but the defense counsel replied, “Look—you waived your *Miranda* rights. There’s nothing I can do.”

During his closing argument, DA Trotter asked the trial judge—Judge Chamberlain Haller—for permission to make a “demonstration.” The judge agreed, and DA Trotter asked Gambini to stand up in front of the jury. Gambini complied. Turning to the jury, DA Trotter said, “It’s important for you to understand the facts of this case” and then proceeded to choke

Gambini. Several jurors looked on in shock, as Gambini gasped for breath and fell to the ground. Judge Haller said sternly to the prosecutor, “That’s enough! You’ve made your point.” Defense counsel Gibbons immediately objected and moved for a mistrial. Judge Haller denied the motion. Gambini was later convicted and sentenced to life in prison. After Gambini’s (unsuccessful) direct appeals, the conviction was final in December 2024.

Gambini (represented by new counsel, his cousin Vincent Gambini) later filed a petition for a writ of habeas corpus in state court, alleging that (1) defense counsel Gibbons was ineffective for failing to challenge the confession; and (2) the “choking incident” constituted prosecutorial misconduct, which deprived Gambini of his due process right to a fair trial.

The state court issued its decision in fall 2025. Applying *Strickland v. Washington* (1984), the state court rejected the ineffective assistance claim. The state court then held that the prosecutor did engage in misconduct by choking Gambini. The state court observed: “The U.S. Supreme Court has never ruled on this issue. But in 2017, the Eleventh Circuit Court of Appeals held, in a federal criminal case, that ‘a physical assault by a prosecutor during trial clearly violates a defendant’s due process rights.’ We agree.” The state court nevertheless denied habeas relief, finding that this misconduct was “harmless error. Indeed, if anything, the prosecutor’s conduct made the jury sympathize with defendant Gambini.” (You should assume that the state habeas court correctly described the federal case law on prosecutorial misconduct.)

A. Gambini later filed a federal habeas petition, raising only the claim that defense counsel Gibbons provided ineffective assistance at trial by failing to challenge the confession. You are a law clerk for the federal district court judge assigned to this case, and your judge has asked you to examine Gambini’s petition. Be sure to evaluate the arguments on both sides, cite relevant cases and/or statutory provisions, and make a recommendation on whether your judge should grant the habeas petition. (You should assume that Gambini’s federal habeas petition was timely and that he exhausted his state court remedies.)

B. Now assume (only for this part of the problem) the following facts: While Gambini’s federal habeas petition was pending, the Governor of Alabama granted Gambini a full pardon. He is out of jail and a free man. Now, again represented by his cousin Vinny, Gambini has filed suit under 42 U.S.C. § 1983, seeking money damages (1) against DA Trotter and Officer Farley in their personal and official capacities for interrogating Gambini in violation of *Miranda*, and (2) against DA Trotter in his personal capacity for the “choking incident.”

Your judge has now asked you to look at this civil rights lawsuit. Your judge wants to know in part why Gambini waited until after the Governor’s pardon to bring this § 1983 action. You should answer the judge’s question and then discuss the hurdle(s) that Gambini may face in raising his claim(s) against each defendant. Be sure to evaluate the arguments on both sides, cite relevant cases, and make a recommendation as to how your judge should rule on each issue. (You should assume that DA Trotter and Officer Farley are local officials.)